Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1167
Claimant:	Terri Miller
Adjuster:	Valerie Rodriguez

10-23-23
Insured driver reported a sideswipe while changing lanes on a multi-lane road. Claimant is listed as a passenger and is now represented by counsel, who has submitted a bodily injury demand alleging a wrist fracture.

11-11-23
Reviewed the police report and the photos taken at the scene. The vehicle damage is consistent with the described impact, and a few older scratches on the panel may predate this loss.

11-27-23
The responding officer and two independent drivers who stopped at the scene both state that the claimant was not inside the vehicle when the collision occurred. Statements have been requested to clarify this point.

12-5-23
Confirmed the insured is named on the policy and found nothing indicating the damage happened before coverage began. Coverage position remains under review pending the bodily injury evaluation.

1-17-24
Claimant's account of the collision has been consistent in every contact so far, including the initial call and the recorded statement. Counsel has provided the medical records for the wrist.

1-25-24
The medical records show a fracture diagnosis, but the impact described appears very light for injury of this severity. Requested the imaging and any prior records for the wrist and surrounding area.

2-9-24
Prior records show a minor strain in the same area several years ago that healed fully with no lasting limitation. Treatment after this loss followed a typical course and tapered off as the claimant improved.

2-22-24
No independent eyewitnesses have come forward, and the scene photos confirm some of the reported details without settling the question of how the injury occurred. Referred the file for a medical records review.

3-25-24
Sent the reviewer's summary to counsel requesting a response to the outstanding questions about the claimant's location at impact and the prior history. File remains open pending that response.

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Recorded Statement

Claim number:	C-1167
Statement of:	Terri Miller
Taken by:	Valerie Rodriguez
Date:	10-5-23

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather you just refer to me as the claimant, if that's okay.

Q: That's fine. Can you tell me where you were when the collision happened?

A: We were on the feeder road heading east in Katy, Texas, in the right lane. I was riding in the front passenger seat.

Q: What was the driver of your vehicle doing right before impact?

A: We were slowing down because traffic had bunched up ahead. I don't think we were going fast at all.

Q: Did you see the other vehicle before the impact?

A: Not really. I was looking at my phone for a second. The first thing I noticed was a loud bang and our car shoved sideways.

Q: Did the other vehcile appaer to be changing lanes?

A: I believe so. It came over from the lane to our left and clipped the side of our car. The driver never seemed to check before moving over, as far as I could tell.

Q: Did you hit anything else or leave the vehicle at any point?

A: No. We pulled onto the shoulder and waited for the police. I stayed in my seat until the paramedics came.

Q: Can you describe your injuries?

A: My left wrist hurt badly right away. I put my hand out to brace myself against the dashboard. They took X-rays at the hospital and said the wrist was fractured. I've been in a splint since then and I have a follow-up with a hand specialist.

Q: Have you received any treatment since the hospital visit?

A: Yes, I've been doing physical therapy twice a week. It's still hard to grip things and I can't work the way I used to.

Q: Is there anything else you'd like to add to your statement?

A: Only that I'm willing to share my medical records and provide any other documents you need.

Q: Thank you. This concludes the recorded statement.

A: Thank you.